

in the locality in which the notified station is situated, the price payable shall, if such sugar has been booked by the producer to himself, be calculated in accordance with the provisions of sub-sections (3-C) of that section

Explanation.- For the purposes of this clause, the expressions “Producer” and “Sugar” shall have the meanings assigned to these expressions in the Explanation to sub-section (3-C) of Sec. 3 and Cl. (e) of Sec. 2 of the Essential Commodities Act, 1955 (10 of 1955) respectively.

Comment

Section 90 provides for the manner of disposal not removed from notified stations.

91. Price to be paid to person entitled after deducting dues.- (1) Out of the proceeds of any sale of goods under sub-section (1) of Sec. 90 or the price payable therefore under sub-section (4) of that section, the railway administration may retain a sum equal to the freight and other charges due in respect of such goods and the expenses incurred in respect of the goods and the auction thereof and render the surplus, if any, to the person entitled thereto.

(2) Notwithstanding anything contained in sub-section (1) the railway administration may recover by suit any such freight or charge or expenses referred to therein or balance thereof.

(3) Any goods sold under sub-section (1) of Sec. 90 or transferred in compliance with the directions issued under sub-sections(2) of that section shall vest in the buyer or the transferee free from all encumbrances but subject to a priority being given for the sum which may be retained by a railway administration under sub-section(1), the person in whose favour such encumbrance subsists may have a claim in respect of such encumbrance against the surplus, if any, referred to in that sub-section.

Section 91, Sub-section (1) lays down the railway administration may retain the freight and other charges and render the surplus to the person entitled thereto.

Sub-section (2) provides that realization of freight and other charges by public auction of the goods shall not bar recovery by suit of freight and other charges by railway administration.

Sub-section (3) provides that any goods sold under sub-section (1) shall vest in the buyer of the transferee free from all encumbrances.